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UNITED STATES BANKRUPTCY COURT
DISTRICT OF NEW JERSEY

Caption in Compliance with D.N.J. LBR 9004-1

In re: Supor Properties Enterprises LLC, *et al.*[1], Debtors.	Case No. 24-13427 (SLM) Judge: Hon. Stacey L. Meisel Chapter 11 (Jointly Administered)
Supor Properties Enterprises LLC, J Supor 136-1 Realty LLC, Supor-172 Realty LLC, and Supor Properties 600 Urban Renewal, LLC, Plaintiffs, v. Everest Blue Capital LLC and Does I-V, Defendants.	Adv. Pro. No. 26-01475-SLM

[1] The Debtors in these related chapter 11 cases, along with the last four digits of each Debtor's federal tax identification number are: Supor Properties Enterprises LLC (5580); J Supor 136-1 Realty LLC (3205); Supor-172 Realty LLC (EIN No. 5662); Supor Properties Breiderhoft LLC (7258); Supor Properties Devon LLC (6357); Shore Properties Associates North LLC (6707); Supor Properties 600 Urban Renewal, LLC (8604); JS Realty Properties, LLC (2497); and Supor Properties Harrison Avenue, LLC (1728).

COMPLAINT

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Plaintiffs Supor Properties Enterprises LLC, J Supor 136-1 Realty LLC, Supor-172 Realty LLC (collectively, the "FER Debtors," the "FER Plaintiffs" or "FER Sellers"), and Supor Properties 600 Urban Renewal, LLC ("Supor 600"), each a "Plaintiff" or "Seller" and collectively "Plaintiffs" or "Sellers", by and through their undersigned counsel, for their Complaint against Defendant Everest Blue Capital LLC ("Everest Capital" or "Lender"), hereby state and allege as follows:

THE PARTIES

1. Plaintiff Supor Properties Enterprises LLC ("Supor Enterprises") is a Delaware limited liability company, with a post office address of 433 Bergen Avenue, Kearny, New Jersey 07032.

2. Plaintiff J Supor 136-1 Realty LLC ("Supor 136") is a Delaware limited liability company, with a post office address of 433 Bergen Avenue, Kearny, New Jersey 07032.

3. Plaintiff Supor-172 Realty LLC ("Supor 172") is a Delaware limited liability company, with a post office address of 433 Bergen Avenue, Kearny, New Jersey 07032.

4. Plaintiff Supor 600 is a New Jersey limited liability company, with a post office address of 433 Bergen Avenue, Kearny, New Jersey 07032.

5. Upon information and belief, Defendant Everest Capital is a limited liability company incorporated in Connecticut with a principal business address of 136-31 41st Avenue, Suite 8, Flushing, New York 11355.

JURISDICTION AND VENUE

6. On April 2, 2024, (the "Petition Date") Plaintiffs and affiliates Supor Properties Breiderhoft LLC; Supor Properties Devon LLC; Shore Properties Associates North LLC; JS Realty Properties, LLC; and Supor Properties Harrison Avenue LLC (each along with Plaintiffs a

Avenue LLC (each, along with Plaintiffs, a "Debtor" and collectively with Plaintiffs, the "Debtors") filed voluntary chapter 11 bankruptcy petitions with the United States Bankruptcy Court for the District of New Jersey (the "Bankruptcy Cases"). On April 8, 2024, this Court entered an Order providing for the joint administration of the Bankruptcy Cases [ECF No. 35].[2]

7. This Court has jurisdiction over this adversary proceeding pursuant to 28 U.S.C. § 1334(b) and 28 U.S.C. § 157(b)(2) and (e), the Debtors' confirmed Plan and the Confirmation Order (defined, *infra*), all of which specifically reserved and retained jurisdiction of this Court as to the issues raised in this adversary proceeding. This is a "core proceeding" pursuant to 28 U.S.C. § 157(b)(2)(o).

8. Article XV of the Plan provides that "[a]fter Confirmation of the Plan, the Bankruptcy Court shall retain jurisdiction to the fullest extent legally permissible for all purposes consistent with the Plan and the Code," including the "determination of all causes of action, controversies, disputes, or conflicts… between the Reorganized Debtors and any other Person, including, but not limited to, any right of the Reorganized Debtors to recover assets."

9. This adversary proceeding arises directly from the Everest Capital Loan Commitments (defined, *infra*), which were approved by this Court and the subject of multiple orders of this Court, including the Order Modifying Order Compelling Debtors' Performance entered on May 22, 2026 [ECF No. 525] and the Order entered June 12, 2026 [ECF No. 532], each of which incorporated and addressed the Everest Capital Loan Commitments as integral to the Debtors' Exit Transactions under the confirmed Plan.

10. Venue is proper in this district pursuant to 28 U.S.C. §§ 1408 and 1409. This adversary proceeding is commenced pursuant to Rules 7001(1), (7) and (9), 7064 and 7065 of the Federal Rules of Bankruptcy Procedure and 11 U.S.C. § 105(a).

[2] All ECF references are to the docket in the jointly administered Bankruptcy Cases.

of Bankruptcy Procedure and 11 U.S.C. §105(a).

ALLEGATIONS COMMON TO ALL CLAIMS FOR RELIEF

A. The Plaintiffs and their Properties.

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A. The Plaintiffs and their Properties.

11. Debtor Plaintiff Supor Enterprises owned part of the property commonly known as 1000 Frank E Rodgers Boulevard, Harrison, New Jersey (specifically, lot 5.02 in block 151; lot 17.02 in block 137; and lot 1.02 in block 149) ("FER 1 Property"). The sole member of Supor Enterprises is S&B Realty Partnership. The partners of S&B Realty Partnership are Joseph Supor III ("Mr. Supor") and the Marital Trust under the Last Will and Testament of Joseph Supor, Jr. Dated September 13, 2002, as Amended by First Codicil Dated June 14, 2007 (the "Marital Trust"). Mr. Supor is the trustee of the Marital Trust and a beneficiary of the Marital Trust.

11. Debtor Plaintiff Supor Enterprises owned part of the property commonly known as 1000 Frank E Rodgers Boulevard, Harrison, New Jersey (specifically, lot 5.02 in block 151; lot 17.02 in block 137; and lot 1.02 in block 149) ("FER 1 Property"). The sole member of Supor Enterprises is S&B Realty Partnership. The partners of S&B Realty Partnership are Joseph Supor III ("Mr. Supor") and the Marital Trust under the Last Will and Testament of Joseph Supor, Jr. Dated September 13, 2002, as Amended by First Codicil Dated June 14, 2007 (the "Marital Trust"). Mr. Supor is the trustee of the Marital Trust and a beneficiary of the Marital Trust.

12. Debtor Plaintiff Supor 136 owned part of the property commonly known as 1000 Frank E Rodgers Boulevard, Harrison, New Jersey (specifically, lot 1.07 in block 136) ("FER 2 Property"). The sole member of Supor 136 is J Supor 136-1 LLC. The sole member of J Supor 136-1 LLC is Mr. Supor.

12. Debtor Plaintiff Supor 136 owned part of the property commonly known as 1000 Frank E Rodgers Boulevard, Harrison, New Jersey (specifically, lot 1.07 in block 136) ("FER 2 Property"). The sole member of Supor 136 is J Supor 136-1 LLC. The sole member of J Supor 136-1 LLC is Mr. Supor.

13. Debtor Plaintiff Supor 172 owns part of the property commonly known as 1000 Frank E Rodgers Boulevard, Harrison, New Jersey (specifically, lot 1 in block 172) ("FER 3 Property" and together with FER 1 Property and FER 2 Property, the "FER Property"). The sole member of Supor 172 is Supor-172 LLC. The sole member of Supor-172 LLC is Mr. Supor.

13. Debtor Plaintiff Supor 172 owns part of the property commonly known as 1000 Frank E Rodgers Boulevard, Harrison, New Jersey (specifically, lot 1 in block 172) ("FER 3 Property" and together with FER 1 Property and FER 2 Property, the "FER Property"). The sole member of Supor 172 is Supor-172 LLC. The sole member of Supor-172 LLC is Mr. Supor.

14. The FER Property at 1000 Frank E Rodgers Boulevard, Harrison New Jersey consists of contiguous parcels of unimproved and vacant land, together comprising approximately 9.85 acres.

14. The FER Property at 1000 Frank E Rodgers Boulevard, Harrison New Jersey consists of contiguous parcels of unimproved and vacant land, together comprising approximately 9.85 acres.

15. The FER Property was the subject of an Amended and Restated Redevelopment Agreement dated February 24, 2021, by and between the Harrison Redevelopment Agency, the Town of Harrison, Supor Enterprises, Supor 136 and Supor 172 (the "Harrison RDA"). The Harrison RDA was recorded with the

15. The FER Property was the subject of an Amended and Restated Redevelopment Agreement dated February 24, 2021, by and between the Harrison Redevelopment Agency, the Town of Harrison, Supor Enterprises, Supor 136 and Supor 172 (the "Harrison RDA"). The

Harrison RDA was recorded with the Hudson County Register on April 20, 2021, at book 9552, page 39, index number 20210420010031740.

16. The Harrison RDA granted Plaintiffs rights to redevelop the FER Property and construct 1,500 residential units, a 200-room hotel, 151,960 square feet of retail space, 1,000,000 square feet of office space and 4,570 parking spaces, making the FER Property a uniquely valuable and irreplaceable real estate asset.

17. Supor 600 is a New Jersey limited liability company formed on July 18, 2019. The sole member of Supor 600 is Supor Properties 600 UR Holding LLC.

18. Debtor Plaintiff Supor 600 owns the property commonly known as 600 Guyon Drive, Harrison, New Jersey (lot 16.01 in block 150) (the "600 Guyon Property").

19. The 600 Guyon Property consists of approximately 3 acres of land improved with a 50,000 square foot building consisting of warehouse and office space. The 600 Guyon Property is adjacent to the FER Property.

B. The Sale Process.

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20. On April 5, 2024, the Debtors filed a motion for an order authorizing the employment of CBRE, Inc. ("CBRE") as their real estate broker for purposes of marketing and selling real properties owned by the Debtors – including the FER Property and the 600 Guyon Property [ECF No. 24].

21. On April 15, 2024, the Bankruptcy Court entered an order authorizing the Debtors' employment of CBRE as their real estate broker [ECF No. 53].

[Paragraphs 20 to 197 of the filing, and pages 6 to 31, are not transcribed in this sample.]

22. Misled by Everest Capital's misrepresentations, Plaintiffs paid Everest Capital two $100,000 standby deposits.

23. At no point prior to June 17, 2026, did Everest Capital ever raise any concern about closing on the loans.

21. On April 22, 2024, Debtors filed a *Motion for Entry of an Order (I)(A) Approving Bidding Procedures, (B) Scheduling Bid Deadlines and an Auction, and (C) Approving the Form and Manner of Notice Thereof, and (II) (A) Authorizing the Sale of Assets and (B) Granting Related Relief* [ECF No. 7] (the "Sale Procedures Motion"). The Sale Procedures

199. At no point prior to June 17, 2026, did Everest Capital ever raise any concern about closing on the loans.

200. Indeed, during the June 8, 2026 hearing, counsel for Everest Capital represented to the Court and Plaintiffs that Everest Capital was ready, willing, and able to close on the loans.

201. On June 17, 2026, for the very first time, Everest Capital advised that it was declining to fund the loans because the Everest Capital FER Loan Commitment allegedly required that all obligations to Secured Creditors be satisfied, despite the fact that the Everest Capital FER Loan Commitment contained no such provision or requirement.

202. Secured Creditors agreed to waive its rights to collect any shortfall from Mr. Supor under his personal guaranty on the condition that the Everest Capital FER Loan Commitment loan was funded by Everest Capital.

203. There were no adverse material changes to Plaintiffs' financial condition.

204. Plaintiffs satisfied all conditions required by them under the Everest Capital Loan Commitments.

205. On several occasions, Mr. Wu represented to both the Court and to Plaintiffs that Everest Capital had the money to fund the loans, was ready, willing and able to close on the loans, and understood that Everest Capital was obligated to close on the loans under the Everest Capital Loan Commitments, yet Everest Capital never funded the loans as promised.

206. Everest Capital's campaign of deceit extended as far as misrepresenting to Plaintiffs on June 30, 2026, that Everest Capital had the funds in place to initiate the required wire payments that very afternoon.

207. Upon information and belief, Everest Capital knew when it made these statements that they were, in fact, untrue.

24. Indeed, during the June 8, 2026 hearing, counsel for Everest Capital represented to the Court and Plaintiffs that Everest Capital was ready, willing, and able to close on the loans.

25. On June 17, 2026, for the very first time, Everest Capital advised that it was declining to fund the loans because the Everest Capital FER Loan Commitment allegedly required that all obligations to Secured Creditors be satisfied, despite the fact that the Everest Capital FER Loan Commitment contained no such provision or requirement.

26. Secured Creditors agreed to waive its rights to collect any shortfall from Mr. Supor under his personal guaranty on the condition that the Everest Capital FER Loan Commitment loan was funded by Everest Capital.

27. There were no adverse material changes to Plaintiffs' financial condition.

28. Plaintiffs satisfied all conditions required by them under the Everest Capital Loan Commitments.

29. On several occasions, Mr. Wu represented to both the Court and to Plaintiffs that Everest Capital had the money to fund the loans, was ready, willing and able to close on the loans, and understood that Everest Capital was obligated to close on the loans under the Everest Capital Loan Commitments, yet Everest Capital never funded the loans as promised.

30. Everest Capital's campaign of deceit extended as far as misrepresenting to Plaintiffs on June 30, 2026, that Everest Capital had the funds in place to initiate the required wire payments that very afternoon.

31. Upon information and belief, Everest Capital knew when it made these statements that they were, in fact, untrue.

32. Upon information and belief, Everest Capital did not at any time have the ability or the intention to close on the Everest Capital Loan Commitments.

208. Upon information and belief, Everest Capital did not at any time have the ability or the intention to close on the Everest Capital Loan Commitments.

209. The foregoing conduct by Everest Capital constitutes unconscionable commercial practices, deception, fraud, false pretenses, false promises, and/or misrepresentation within the meaning of N.J.S.A. 56:8-2.

210. Plaintiffs satisfied all of their obligations under the Everest Capital Loan Commitments. Nevertheless, Everest Capital did not fund the loans as required by the Everest Capital Loan Commitments and the Order Compelling Everest Capital to Fund and Close Loans.

211. Despite failing to fund and close the loans as required by the Everest Capital Loan Commitments and the Order Compelling Everest Capital to Fund and Close Loans, Everest Capital has also refused to return Plaintiffs' two $100,000 standby deposits.

212. Plaintiffs suffered an ascertainable loss as a direct and proximate result of Everest Capital's unlawful conduct, including the loss of its deposits, totaling $200,000, as well as the loss of ownership of the FER Property which was sold for $20 million less than would have been realized if the FER Loan closed.

213. There is a direct causal relationship between Everest Capital's unlawful conduct under the NJCFA and the ascertainable losses suffered by Plaintiffs.

214. Pursuant to N.J.S.A. 56:8-19, Plaintiffs are entitled to recover treble damages for any ascertainable loss suffered as a result of Everest Capital's unlawful conduct, together with reasonable attorneys' fees, filing fees, and reasonable costs of suit.

WHEREFORE, Plaintiffs respectfully requests that this Court enter judgment in favor of Plaintiffs and against Defendant Everest Capital as follows:

a. Awarding Plaintiffs damages in an amount to be determined at trial;

(b) Trebling all damages awarded to Plaintiffs;

(c) Awarding Plaintiffs their costs and attorneys' fees;

(d) Granting Plaintiffs such other and further relief as the Court deems equitable and just.

b. Trebling all damages awarded to Plaintiffs;

c. Awarding Plaintiffs their costs and attorneys' fees;

d. Granting Plaintiffs such other and further relief as the Court deems equitable and just.

Dated: October 12, 2026

Respectfully submitted,

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Dated: October 12 , 2026